Oct. 21, 1976, see section 701 of Pub. L. 94–579, set out as a note under section 1701 of this title.

§ 301. Rules and regulations

The Secretary of the Interior is authorized to make all necessary rules and regulations in harmony with the provisions and purposes of this subchapter for the purpose of carrying the same into effect.

(Dec. 29, 1916, ch. 9, § 11, 39 Stat. 865.)

§ 302. Repealed. Pub. L. 94–579, title VII, § 702, Oct. 21, 1976, 90 Stat. 2787

Section, act Mar. 4, 1923, ch. 245, § 2, 42 Stat. 1445, related to additional entries, and lands in national forests.

EFFECTIVE DATE OF REPEAL

Section 702 of Pub. L. 94–579 provided that the repeal made by that section is effective on and after Oct. 21, 1976, except such effective date to be on and after tenth anniversary of date of approval of this Act, Oct. 21, 1976, insofar as homestead laws apply to public lands in Alaska.

SAVINGS PROVISION

Repeal by Pub. L. 94–579 not to be construed as terminating any valid lease, permit, patent, etc., existing on Oct. 21, 1976, see section 701 of Pub. L. 94–579, set out as a note under section 1701 of this title.

CHAPTER 8—TIMBER AND STONE LANDS

§§ 311 to 313. Repealed. Aug. 1, 1955, ch. 448, 69 Stat. 434

Section 311, acts June 3, 1878, ch. 151, § 1, 20 Stat. 89; Aug. 4, 1892, ch. 375, § 2, 27 Stat. 348; May 18, 1898, ch. 344, § 1, 30 Stat. 418, authorized sale of public lands valuable chiefly for timber or stone.

Section 312, acts June 3, 1878, ch. 151, § 2, 20 Stat. 89; Oct. 28, 1921, ch. 114, § 1, 42 Stat. 208; Mar. 3, 1925, ch. 462, 43 Stat. 1145, provided for applications for purchase of timber and stone lands.

Section 313, act June 3, 1878, ch. 151, § 3, 20 Stat. 90, provided for publication of applications to purchase timber and stone lands, patent and entry.

EXISTING RIGHTS AND CLAIMS

Act Aug. 1, 1955, provided that the repeal of sections 311 to 313 is subject to valid existing rights and claims.

CHAPTER 8A—GRAZING LANDS

SUBCHAPTER I—GENERALLY

Sec.

315. Grazing districts; establishment; restrictions; prior rights; rights-of-way; hearing and notice; hunting or fishing rights.
315a. Protection, administration, regulation, and improvement of districts; rules and regulations; study of erosion and flood control; offenses.
315b. Grazing permits; fees; vested water rights; permits not to create right in land.
315c. Fences, wells, reservoirs, and other improvements; construction; permits; partition fences.
315d. Grazing stock for domestic purposes; use of natural resources.
315e. Rights of way; development of mineral resources.
315f. Homestead entry within district or withdrawn lands; classification; preferences.
315g, 315g–1. Repealed.
315h. Cooperation with associations, land officials, and agencies engaged in conservation or propagation of wildlife; local hearings on appeals; acceptance and use of contributions.
315i. Disposition of moneys received; availability for improvements.
315j. Appropriation of moneys received; application of public-land laws to Indian ceded lands; application for mineral title to lands.
315k. Cooperation with governmental departments; coordination of range administration.
315*l*. Lands under national-forest administration.
315m. Lease of isolated or disconnected tracts for grazing; preferences.
315m–1. Lease of State, county, or privately owned lands; period of lease; rental.
315m–2. Administration of leased lands.
315m–3. Availability of contributions received.
315m–4. Disposition of receipts; availability for leasing of land.
315n. State police power not abridged.
315*o*. Repealed.
315*o*–1. Board of grazing district advisers; composition; meetings; duties.
315*o*–2. Animals and equipment for field employees.
315p. Repealed.
315q. Withdrawal of lands for war or national defense purposes; payment for cancellation of permits or licenses.
315r. Rental payments in advance in case of withdrawal of lands for war or national defense purposes.

SUBCHAPTER II—ALASKA

316. Declaration of policy.
316a. Definitions.
316b. Grazing districts.
316c. Alteration of grazing districts.
316d. Notice of establishment and alteration of grazing district; hearings.
316e. Preferences.
316f. Terms and conditions of lease.
(a) Period of lease.
(b) Size of leasehold.
(c) Terms for surrender of lease.
(d) Terms for renewal of lease.
316g. Grazing fees.
316h. Dispositions of receipts.
316i. Assignment of leases.
316j. Improvements to leasehold.
(a) Authorization.
(b) Removal of improvement upon termination of lease.
(c) Payment for improvement upon termination of lease.
316k. Penalties.
316*l*. Stock driveways and free grazing.
(a) Establishment, maintenance and regulation.
(b) Grazing of livestock free of charge.
(c) Grazing allotments to Eskimos or other native or half-breed.
316m. Hearing and appeals.
316n. Administration.
316*o*. Laws applicable.

SUBCHAPTER I—GENERALLY

SUBCHAPTER REFERRED TO IN OTHER SECTIONS

This subchapter is referred to in sections 315m–2, 1751, 1752, 1903 of this title; title 16 section 460iii–3; title 25 section 621; title 30 section 601; title 50 App. section 561.

§ 315. Grazing districts; establishment; restrictions; prior rights; rights-of-way; hearing and notice; hunting or fishing rights

In order to promote the highest use of the public lands pending its final disposal, the Secretary of the Interior is authorized, in his discretion, by order to establish grazing districts or additions thereto and/or to modify the bound-

aries thereof, of vacant, unappropriated, and unreserved lands from any part of the public domain of the United States (exclusive of Alaska), which are not in national forests, national parks and monuments, Indian reservations, revested Oregon and California Railroad grant lands, or revested Coos Bay Wagon Road grant lands, and which in his opinion are chiefly valuable for grazing and raising forage crops: *Provided*, That no lands withdrawn or reserved for any other purpose shall be included in any such district except with the approval of the head of the department having jurisdiction thereof. Nothing in this subchapter shall be construed in any way to diminish, restrict, or impair any right which has been heretofore or may be hereafter initiated under existing law validly affecting the public lands, and which is maintained pursuant to such law except as otherwise expressly provided in this subchapter nor to affect any land heretofore or hereafter surveyed which, except for the provisions of this subchapter, would be a part of any grant to any State, nor as limiting or restricting the power or authority of any State as to matters within its jurisdiction. Whenever any grazing district is established pursuant to this subchapter, the Secretary shall grant to owners of land adjacent to such district, upon application of any such owner, such rights-of-way over the lands included in such district for stock-driving purposes as may be necessary for the convenient access by any such owner to marketing facilities or to lands not within such district owned by such person or upon which such person has stock-grazing rights. Neither this subchapter nor the Act of December 29, 1916 (39 Stat. 862; U.S.C., title 43, secs. 291 and following), commonly known as the ''Stock Raising Homestead Act'', shall be construed as limiting the authority or policy of Congress or the President to include in national forests public lands of the character described in section 471[1] of title 16, for the purposes set forth in section 475 of title 16, or such other purposes as Congress may specify. Before grazing districts are created in any State as herein provided, a hearing shall be held in the State, after public notice thereof shall have been given, at such location convenient for the attendance of State officials, and the settlers, residents, and livestock owners of the vicinity, as may be determined by the Secretary of the Interior. No such district shall be established until the expiration of ninety days after such notice shall have been given, nor until twenty days after such hearing shall be held: *Provided, however*, That the publication of such notice shall have the effect of withdrawing all public lands within the exterior boundary of such proposed grazing districts from all forms of entry of settlement. Nothing in this subchapter shall be construed as in any way altering or restricting the right to hunt or fish within a grazing district in accordance with the laws of the United States or of any State, or as vesting in any permittee any right whatsoever to interfere with hunting or fishing within a grazing district.

[1] See References in Text note below.

(June 28, 1934, ch. 865, § 1, 48 Stat. 1269; June 26, 1936, ch. 842, title I, § 1, 49 Stat. 1976; May 28, 1954, ch. 243, § 2, 68 Stat. 151.)

REFERENCES IN TEXT

The Stock Raising Homestead Act, referred to in text, is act Dec. 29, 1916, ch. 9, 39 Stat. 862, as amended, which was classified generally to subchapter X (§ 291 et seq.) of chapter 7 of this title and was repealed by Pub. L. 94–579, title VII, §§ 702, 704(a), Oct. 21, 1976, 90 Stat. 2787, 2792, except for sections 9 and 11 which are classified to sections 299 and 301, respectively, of this title. For complete classification of this Act to the Code, see Short Title note set out under section 291 of this title and Tables.

Section 471 of title 16, referred to in text, was repealed by Pub. L. 94–579, title VII, § 704(a), Oct. 21, 1976, 90 Stat. 2792.

AMENDMENTS

1954—Act May 28, 1954, struck out of first sentence provision limiting to one hundred and forty-two million acres the area which might be included in grazing districts.

1936—Act June 26, 1936, increased acreage which could be included in grazing districts from 80 million to 142 million acres.

SHORT TITLE

Act June 28, 1934, which enacted this subchapter, is popularly known as the ''Taylor Grazing Act''.

SECTION REFERRED TO IN OTHER SECTIONS

This section is referred to in sections 315a, 1715 of this title.

§ 315a. Protection, administration, regulation, and improvement of districts; rules and regulations; study of erosion and flood control; offenses

The Secretary of the Interior shall make provision for the protection, administration, regulation, and improvement of such grazing districts as may be created under the authority of section 315 of this title, and he shall make such rules and regulations and establish such service, enter into such cooperative agreements, and do any and all things necessary to accomplish the purposes of this subchapter and to insure the objects of such grazing districts, namely, to regulate their occupancy and use, to preserve the land and its resources from destruction or unnecessary injury, to provide for the orderly use, improvement, and development of the range; and the Secretary of the Interior is authorized to continue the study of erosion and flood control and to perform such work as may be necessary amply to protect and rehabilitate the areas subject to the provisions of this subchapter, through such funds as may be made available for that purpose, and any willful violation of the provisions of this subchapter or of such rules and regulations thereunder after actual notice thereof shall be punishable by a fine of not more than $500.

(June 28, 1934, ch. 865, § 2, 48 Stat. 1270.)

§ 315b. Grazing permits; fees; vested water rights; permits not to create right in land

The Secretary of the Interior is authorized to issue or cause to be issued permits to graze livestock on such grazing districts to such bona fide settlers, residents, and other stock owners as